Frequently Asked Questions about TCYSA's actions to expel Chinqually Booters Soccer Club

On Feb 12, 2017, the TCYSA board made the difficult decision to expel Chinqually Booters Soccer Club (CBSC) from the Thurston County Youth Soccer Association. The essential facts were administrative--CBSC was on probation for failing to acquire insurance that covered their non-Washington Youth Soccer activities. They had reached the end of an extended time deadline to arrange proper insurance coverage. After much deliberation, the TCYSA Board ultimately voted to expel Chinqually for failure to comply with the terms of probation, effective March 15, 2017.

A decision of this type has generated a number of questions from the soccer community. Here are some answers to commonly asked questions.

What is Thurston County Youth Soccer Association (TCYSA) and why does it have authority over CBSC?

TCYSA is the local administrative and governing body for youth soccer clubs in Thurston county that are registered with Washington Youth Soccer (WYS). Washington Youth Soccer provides higher level administration and rulemaking and provides insurance coverage. TCYSA serves as the general manager for local clubs for scheduling all games and developing county-wide policies that govern all local league play. CBSC is a club registered with WYS and has been a member of TCYSA so that like all other members it is bound by the rules and policies of TCYSA and receives the benefits like league-wide game and referee scheduling.

Is TCYSA requiring CBSC to be dual registered in WYS and US Club Soccer?

No, TCYSA is a member of WYS and not US Club Soccer. However, TCYSA is prohibited from requiring dual registration and has never sought to require dual registration for Clubs that also participate in US Club Soccer.

Why is there a question about insurance coverage?

CBSC has some teams that are not registered with WYS so they do not receive insurance coverage through WYS. These teams are registered with US Club Soccer and receive standard player/coach coverage through that association. The potential gap in insurance coverage applies only to the TCYSA Board for activities not covered by WYS. That means that it is possible that TCYSA volunteer board members could be held liable if there is a claim that occurs as a result of non-WYS activities where the claimant names TCYSA as an additional responsible party. This is the insurance gap that TCYSA asked CBSC to address.

How long did TCYSA give CBSC to address the insurance issue?

TCYSA first notified CBSC in September, 2016 about the concerns. TCYSA formally requested CBSC indemnify TCYSA and provide equivalent insurance coverage at its November 6, 2016 meeting and asked them to comply by the end of November and placed them on probation. CBSC failed to meet that deadline. At its January 6, 2017 meeting, TCYSA's Board passed a motion to extend CBSC's probation for 30 more days. During that period CBSC agreed to provide an independent legal review of the possible

liability and need for insurance. CBSC did not meet this deadline. CBSC had more than 90 days of official notice to address the insurance issue.

Why didn't TCYSA just exclude the non-WYS registered teams that make up TC United?

TCYSA's member relationship is with CBSC. TCYSA doesn't have the ability to separately direct or exclude a portion of the CBSC organization. CBSC, as a member of TCYSA, has agreed to the governing authority of TCYSA.

Was TCYSA directed to cease and desist from taking action regarding expulsion of CBSC?

US Club Soccer, which has no authority over TCYSA, did send TCYSA a letter demanding that TCYSA cease and desist any efforts to expel CBSC. . WYS, TCYSA's governing body, was fully advised of the progress of the relative motions passed by TCYSA in real time. Additionally, the letter from US Club Soccer was based on the erroneous assertions that TCYSA was trying to force CBSC to dual register their players.

Can CBSC appeal this decision?

Yes, CBSC may appeal to Washington Youth Soccer, TCYSA's governing body.

By expelling CBSC is TCYSA trying to take over all the playing field and exclude CBSC teams from using fields?

The expulsion of CBSC was directly related to the insurance issue and CBSC's failure to adequately address that issue. TCYSA has not in any way tried to exclude CBSC's use of local fields. In October, TCYSA learned that CBSC had unilaterally switched the field reservations for Lacey fields to CBSC from TCYSA. TCYSA objected and requested that the reservation be returned to TCYSA. TCYSA is working cooperatively with the City of Lacey to insure that every area Club, including CBSC, has access to the fields they need.

Will CBSC recreational teams still be able to play other Clubs in TCYSA?

Unfortunately, no. The recreational league administered by TCYSA is only open to WYS registered teams, which includes teams outside of Thurston County that are registered with WYS.

Was this decision made because TCYSA objects to CBSC operating the competitive program, TC United?

No. TCYSA has never objected to CBSC's decision to offer a competitive soccer program. TCYSA has always valued CBSC's dedication to providing a variety of soccer playing opportunities for youth in our community. The decision was based solely on the concerns over liability from lack of insurance coverage for the TCYSA Board from the non-WYS insured programs. CBSC had the opportunity, but chose not to address those concerns.

Can CBSC rejoin TCYSA?

TCYSA is open to any potential Club that wishes to become a member. If CBSC wanted to rejoin, they would have to demonstrate the same compliance with TCYSA's governing bylaws as other Clubs.